

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Nancy L. Fineman
400 County Center, Redwood City
Department 4, Courtroom 4C
Tuesday July 14, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept4@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5104 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 624 8977 Password: 230279

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

2:00 PM

LINE 1

23-CIV-00637

ANGEL PADILLA VS DISCOVERY PRACTICE MANAGEMENT, INC.

ANGEL PADILLA
DISCOVERY PRACTICE MANAGEMENT, INC.

JOSHUA S FALAKASSA
NANCY RADER WHITEHEAD

PLAINTIFF'S UNOPPOSED MOTION TO APPROVE THE SETTLEMENT PURSUANT TO THE PRIVATE ATTORNEY'S
GENERAL ACT OF 2004

TENTATIVE RULING:

The parties are to APPEAR for the hearing on plaintiff Angel Padilla's second Motion for Approval of Private Attorney General Act (PAGA) Settlement.

On February 9, 2022, Plaintiff filed an individual and class action wage and hour lawsuit. On April 14, 2023, Plaintiff filed a first amended complaint adding a PAGA action. On September 5, 2023, with a written order filed November 8, 2023, the court granted in part and denied in part defendant's motion to compel arbitration. The Court compelled Plaintiff's individual and class claims to arbitration and stayed the PAGA representative claim. (Order of Nov. 8, 2023.) On September 11, 2025, Defendant filed a notice of related case that this case was related to three cases, one in San Diego Superior Court, one in Los Angeles Superior Court, and one in Orange County Superior Court. The Court has no information about the status of any of these cases.

According to the original motion, it is estimated that there are approximately 2,245 aggrieved employees who worked 63,000 pay periods. The proposed settlement amount is \$1,102,500. The settlement will provide a payment of \$520,695.63 to the California Labor and Workforce Development Agency (i.e., 75% of the \$694,260.84 PAGA Penalties Fund). The remaining \$173,565.21 shall be distributed amongst the aggrieved employees.

On March 10, 2026, the Court heard Plaintiff's original motion and in the tentative ruling adopted at the hearing raised questions regarding the settlement. Some of the questions have been answered, but answers to key questions remain unanswered.

In ruling on PAGA settlements, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76 77 (*Moniz*), disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664 ["trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws."]; see *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 ["The court has a fiduciary responsibility as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement."]; *In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.)

In reviewing a PAGA settlement, the trial court “should evaluate [it] to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” (*Moniz, supra*, 72 Cal.App.5th at p. 77.) The court is vested with broad discretion in making that determination. (*Id.* at p. 76.) In ascertaining the fairness of a PAGA settlement, the trial court may consider many of the same factors used to evaluate the fairness of class action settlements, “including the strength of the plaintiffs' case, the risk, the stage of the proceeding, the complexity and likely duration of further litigation, and the settlement amount.” (*Id.* at p. 77; see *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801 (*Dunk*) [discussing that in class actions, courts look at the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, amount offered in settlement, extent of discovery completed and the stage of the proceedings, experience and views of counsel and the reaction of the class members to the proposed settlement.].) The list of factors is not exhaustive and “should be tailored to each case.” (*Dunk, supra*, at p. 1801.) According to the *Dunk* court, “a presumption of fairness exists where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (*Id.* at p. 1801.)

Since the aggrieved parties do not have the right to object to the settlement because the action is brought on behalf of the state and the aggrieved employees have no personal claims (see *Kim v. Reins International California, Inc.* (2020) 9 Cal.5th 73, 81; *Williams v. Superior Court* (2017) 3 Cal.5th 531, 547, fn. 4), the factor of the number of objectors is not relevant in a PAGA action. However, plaintiffs were required and did provide notice to the LWDA, who did not object to the settlement.

Plaintiff has provided a more detailed analysis of the strength of his claims, and the Court determines that the settlement is fair, reasonable, and adequate in view of PAGA's purposes. However, before providing final approval, the Court needs more information about the arbitration, class claims and lawsuits pending in different venues.

Plaintiff's counsel Joshua Falakassa has added several paragraphs to his declaration which describe his specific experience. The parties participated in a mediation session with Abe Melamed, Esq. Plaintiff's counsel is adequate to represent the aggrieved parties and the LWDA.

Plaintiff has provided notice to the Labor Workforce Development Agency (LWDA) of the settlement as required by Labor Code section 2699, subdivision (s)(2)). (Bokhour Dec., ¶ 51, Ex. D.)

The Court finds Phoenix Class Action Administration Solutions (“Phoenix”) is an experienced third-party claims administrator (Moore Dec., ¶¶ 6-11) and approves its retention. The Court finds a reimbursement of \$12,500 to Phoenix reasonable and necessary.

Plaintiff's Counsel have provided information as to attorneys' fees. While a common fund fee is appropriate here, even a proper common fund-based fee award should be reviewed through a lodestar cross-check. (*Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503.)

The Court specifically informed Plaintiff's Counsel in the prior ruling that hourly rates had to be based on the reasonable rate in San Mateo County. While this Court can use its experience to determine a reasonable rate, the court requested this information from counsel. No information was provided by Plaintiff's counsel to support a reasonable hourly rate for San Mateo County.

The Court has a concern about Plaintiff's Counsel's billing records. Both Counsel billed between 1 hour and 1.5 hours in attending and preparing for the hearing on the motion to compel arbitration held on September 5, 2023, despite the minutes from that hearing reflecting no appearances by any parties or counsel. Perhaps the entries were a mistake, but the entries raise a concern about the reliability of the remainder of the bills.

Counsel have failed to justify inclusion of hours billed on procedural matters related to arbitration in their request for fees in this representative settlement. In reviewing the lodestar, the court notes that both Counsel billed duplicative entries within their billing records for retention of an expert to review aggrieved employee records and their review of that expert's analysis. Since the lodestar is a cross-check to the percentage fee, the Court needs to understand why two attorneys with approximately the same years of experience billed repeatedly for completing the exact same tasks, and why more junior attorneys were not used.

The Court and the parties shall discuss at the hearing the best way for Plaintiff and his counsel to address these issues and the following issues:

Scope of Settlement: Plaintiff and Plaintiff's Counsel state that although the Court compelled individual and class claims to arbitration, Plaintiff only proceeded with individual claims due to the arbitration agreement's class action waiver. The Court would like clarification as to whether it was the arbitrator who made this decision, or Plaintiff and his counsel, and why there is no request to dismiss the class claims from this lawsuit.

Also, counsel failed to address the Court's statement in its March 10, 2026 ruling that the Court had no information about the status of related cases in San Diego, Los Angeles, and Orange County Superior Courts. How does this settlement impact these lawsuits? Are the claims alleged substantially the same?

Costs: Plaintiff's Counsel's declarations still reflect different requested costs.

Service Award: Plaintiff mentions for the first time in his declaration that he has individually resolved his claims with Defendant. The amount of the settlement and the claims on which it is based is relevant to the service award.

Settlement Administration: The Settlement still identifies two different settlement administrators. (SA, ¶¶ 1.2, 7.1.)

Notice: The notice incorrectly states that the matter is in Solano County Superior Court. The first sentence under “What Are the Claims?” identifies “Plaintiffs” rather than “Plaintiff.” The second sentence in the second paragraph in that section does the same. The motion and Settlement’s definitions of aggrieved employees do not include the word “hourly” so the term should be taken out in the definition in the notice.

2:00 PM

LINE 2

24-CIV-00391

CHRISTIAN CRUZ VS BAY AREA PL SERVICES, ET AL.

CHRISTIAN CRUZ
SALUSTIANO RIBIERO

JUSTIN LO
SAM G SHERMAN

MOTION FOR AN ORDER APPROVING SETTLEMENT OF CLAIMS BROUGHT PURSUANT TO THE PRIVATE GENERAL ACT OF 2004, AWARDING ATTORNEYS' FEES, COSTS, AND REIMBURSEMENT OF SETTLEMENT ADMINISTRATION EXPENSES

TENTATIVE RULING:

The court GRANTS plaintiff Christian Cruz's (Plaintiff) Motion for Approval of PAGA (Private Attorney General Act) Settlement Agreement.

This Court denied Plaintiff's previous motion for PAGA approval based on several issues which precluded the Court from determining whether the settlement was a fair and reasonable compromise of claims and the court had questions about the attorneys' fees.

According to the motion, it is estimated that there are approximately 172 aggrieved employees who worked approximately 3,309 pay periods. The proposed settlement amount is \$130,000. The settlement will provide a payment of \$57,291.41 to the California Labor and Workforce Development Agency (i.e., 75% of the \$76,388.55 PAGA Penalties Fund). The remaining \$19,097.14 shall be distributed amongst the aggrieved employees.

In ruling on class action and PAGA settlements, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76 77, disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664 ["trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws."] (*Moniz*); see *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 (*Kullar*) ["The court has a fiduciary responsibility as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement."]; *In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.)

In reviewing a PAGA settlement, the trial court "should evaluate [it] to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." (*Moniz, supra*, 72 Cal.App.5th at p. 77.) The court is vested with broad discretion in making that determination. (*Id.* at p. 76.) In ascertaining the fairness of a PAGA settlement, the trial court may consider many of the same factors used to evaluate the fairness of class action settlements, "including the strength of the plaintiffs' case, the risk, the stage of the proceeding, the complexity and likely

duration of further litigation, and the settlement amount.” (*Id.* at p. 77; see *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801 (*Dunk*) [discussing that in class actions, courts look at the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, amount offered in settlement, extent of discovery completed and the stage of the proceedings, experience and views of counsel and the reaction of the class members to the proposed settlement.].) The list of factors is not exhaustive and “should be tailored to each case.” (*Dunk, supra*, at p. 1801.) According to the *Dunk* court, “a presumption of fairness exists where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (*Id.* at p. 1801.)

Since the aggrieved parties do not have the right to object to the settlement because the action is brought on behalf of the state and the aggrieved employees have no personal claims (see *Kim v. Reins International California, Inc.* (2020) 9 Cal.5th 73, 81; *Williams v. Superior Court* (2017) 3 Cal.5th 531, 547, fn. 4), the factor of the number of objectors is not relevant in a PAGA action. However, plaintiffs were required and did provide notice to the LWDA, who did not object to the settlement.

The Court finds that the PAGA settlement is fair, reasonable, and adequate in view of PAGA’s purposes. The Court also approves the notice. Plaintiff was represented by Work Lawyers, PC. Attorneys Justin Lo and May To of Work Lawyers, PC provided declarations describing their firm’s experience and their qualifications to serve as counsel in this PAGA action. (Lo Dec., filed Oct. 7, 2025, ¶¶ 2-5 (“Oct. 7 Lo Dec.”); To Dec., filed Oct. 7, 2025, ¶¶ 6-7.) While the parties did not use the assistance of a mediator, Plaintiff’s Counsel has adequately demonstrated that he weighed the strengths and weaknesses of the PAGA claims, estimated damages with the assistance of an expert, and properly discounted the theoretical damages based on the risks in this case. Plaintiff’s Counsel Justin Lo has now provided detailed information as to the strengths and weaknesses of each claim and explained how he and an expert estimated Defendants’ theoretical exposure as to each claim. (Lo Dec., ¶¶ 3-15.) All together, the claims result in maximum estimated damages of \$1,634,462.00. Lo discusses his analysis for why counsel made certain reductions and discusses the risks of litigation. The Court finds that the settlement is reasonable.

Plaintiff has provided notice to the Labor Workforce Development Agency (LWDA) of the settlement as required by Labor Code section 2699, subdivision (s)(2)). (Oct. 7 Lo Dec., Ex. C.)

The Court finds Phoenix Class Action Administration Solutions (“Phoenix”) is an experienced third-party claims administrator (Oct. 7 Lo Dec., Ex. F) and approves its retention. The Court finds a reimbursement of \$4,000 to Phoenix reasonable and necessary.

The Court grants attorneys’ fees of \$35,155, which is Plaintiff’s Counsel’s lodestar, plus the requested multiplier of 1.23 for a total award of \$43,329.00, which is an award of 33 1/3% of the gross recovery.

While plaintiff's counsel provides information about its lodestar, since it worked on a contingency basis, the court first analyzes the requested fees, which are 33 1/3 % of the gross recovery as the percentage being awarded for attorneys' fees. This 33 1/3% contingency fee is common for class actions. (See, e.g., In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 506 ["33 1/3 percent of the common fund is consistent with, and in the range of, awards in other class action lawsuits"]; *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 545 [fee awards in class actions average about one-third of recovery]; *Chavez v. Netflix* (2008) 162 App. 4th 43, 66 fn. 11 [final fee award was 27.9% of the benefits].)

While a common fund fee is appropriate here, even a proper common fund-based fee award should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503 (*Lafitte*), the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. The Supreme Court stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.)

The Court performs a lodestar cross-check, which confirms the reasonableness of the fees.

The Court finds the hourly rate and time spent reasonable. Lo has an hourly rate of \$750, which he states has been approved in wage and hour litigation in state court. (Lo Decl. filed Oct. 10, 2025, ¶¶ 27). He has been an attorney since 2011 and specializes in litigation with an emphasis in employment litigation. (*Id.*, ¶¶ 2-5.) May T. Ito, the other attorney who worked on the case, has an hourly rate of \$600.00 per hour and has been an attorney for about ten years. (To Decl., filed Oct. 7, 2025, ¶¶ 5, 6.) She has experience in employment litigation and uses the Laffey Matrix to justify her hourly rate, which Matrix has an hourly rate higher than the one she is requesting. (*Id.*, ¶¶ 6-8.) Neither attorney discusses the reasonable hourly rate for San Mateo County where this case is venued. " 'The reasonable hourly rate is that prevailing in the community for similar work.' " (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095].) This Court may use its own experience to determine the value of attorneys' fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 ["The value of attorney's services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value."]; *Reynolds v. Ford Motor Company* (2020) 47 Cal.App.5th 1105, 1113-14 ["The trial court acted well within its discretion in using 'the prevailing market value in the community for similar legal services' relying on its personal knowledge and familiarity with the area legal services, as the 'touchstone' for determination" of the reasonable hourly rates.] (citations omitted)). This Court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys' fees and costs frequently during her time as a judicial officer. The Court finds the hourly rates reasonable for this type of case in this county. The Court also relies on the Laffey Matrix, www.laffeymatrix.com/see/html. (*Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 702 [court can use Laffey Matrix for reasonable hourly rate].)

The Court find the work performed reasonable and justified. The Court has reviewed Plaintiff's Counsel's billing records and finds that counsel pursued the matter efficiently and delegated tasks to a paralegal or junior attorney where appropriate.

The Court finds the requested multiplier appropriate based upon the contingent risk. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1128.) Plaintiff's counsel is adequate to represent the aggrieved parties and the LWDA.

The Court awards the requested costs of \$6,282.45 and finds them reasonable and necessary for the litigation.

The court notes that the Court's highlighted a needed change of "Defendants expressly denys" to "Defendants expressly deny," Plaintiff's Counsel edited the sentence to read, "Defendants expressly denies." The typo should be corrected.

The proposed order should be updated to reflect this ruling.

Plaintiff's counsel shall email Department 4 by 11:00 a.m. on July 14, 2026 with a proposed date for the compliance hearing, a Tuesday at 2:00 p.m. with a report due five court days before the hearing.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 3

24-CIV-05915

COUNTY OF SAN MATEO VS. JOHN ANTHONY DE LEON, ET AL.

COUNTY OF SAN MATEO
JOHN ANTHONY DE LEON

JESUS PEREDA
MIKHAIL MDINARADZE

PLAINTIFF COUNTY OF SAN MATEO'S MOTION TO COMPEL PLAINTIFF ENCORE TEXTILE SERVICE LLC'S RESPONSES TO FORM INTERROGATORIES, SET ONE AND FOR SANCTIONS

TENTATIVE RULING:

On June 23, 2026, this court heard two discovery motions brought by plaintiff County of San Mateo against defendant Encore Textile Services, Inc. (Encore) and denied both motions. The court noted that there were two motions on calendar for July 14, 2026 and encouraged the parties to informally resolve the dispute and vacate the hearings. The hearings remain on calendar although unlike the previous motions, defendant has failed to file any opposition and there is no reply.

Although the court pointed out in its June 22, 2026 tentative ruling that plaintiff has used the incorrect party title for Encore in its caption referring to it as a plaintiff. Additionally, the court informed plaintiff that it referred to compelling Encore "to respond to Defendant's Special Interrogatories, Set One." These mistakes were not corrected and the caption and first paragraph of the notice for the motion to compel form interrogatories and the request for production of documents, set one makes the same mistake. Once again, the court infers that plaintiff means that it is seeking to compel responses to plaintiff's form interrogatories. Technically, the court cannot order responses to plaintiff's requests since the notice requests an order on defendant's requests.

Additionally in the notice of motion, plaintiff put the date of June 16, 2026 as the hearing date, but the clerk's office changed the hearing date to July 14, 2026. The court file shows a proof of service filed May 15, 2026 of the motion showing service of the motion on defendant on May 15, 2026. Thus, based upon the change of hearing date by the clerk, plaintiff could not have provided on May 15, 2026 proper notice of the June 23, 2026 hearing to Encore. There is no amended proof of service in the court file. Therefore, Encore did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1).) This same mistake was made in the two prior motions and was pointed out to plaintiff in the prior tentative rulings. While defendant may have notice of the motions because of this court's prior tentative ruling, this notice is not the notice that the law requires. Therefore, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 ["court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question."].)

If the court was to consider the motion on its merits, it would deny the motion. As the court previously pointed out in its prior tentative rulings and the same mistake is made in this motion,

plaintiff misapprehends the law. When the responses are entirely objections, which appears to be the case here, only the attorneys' signature and not a verification is required. (See e.g. *Cal. Prac. Guide Civ. Pro. Before Trial* 8:1364.2 (TRG June 2026 update) [citing Code Civ. Proc., 2023.240, subd. (a), 8:1477, *id.*, § 2031.250 re document demands].) Further, although a separate statement in support of a motion to compel is not required when there are no responses, (Cal. Rules of Court, rule 3.1345(b)(1)), it is required when there are responses and a separate statement was required here. (*Id.*, rule 3.1345(a).) Thus, plaintiff's motion is procedurally deficient. Plaintiff makes no attempt to show that the requests are proper and the objections are improper, which is its burden on a motion to compel.

The court orders Jesus Pareda, the attorney for plaintiff to appear at the hearing and explain why in light of the court's prior tentative ruling for the June 23, 2026 hearing, and his failure to correct the errors identified, he did not take this motion off calendar. Zoom appearances are allowed.

2:00 PM

LINE 4

24-CIV-05915 COUNTY OF SAN MATEO VS. JOHN ANTHONY DE LEON, ET AL.

COUNTY OF SAN MATEO
JOHN ANTHONY DE LEON

JESUS PEREDA
MIKHAIL MDINARADZE

PLAINTIFF COUNTY OF SAN MATEO'S MOTION TO COMPEL PLAINTIFF ENCORE TEXTILE SERVICE LLC'S RESPONSES
TO REQUESTS FOR PRODUCTION, SET ONE AND FOR SANCTIONS

TENTATIVE RULING:

See ruling on plaintiff's motion to compel responses to form interrogatories, which tentative is
incorporated by reference as if set forth fully herein.

2:00 PM

LINE 5

25-CIV-09289

MICHAEL S. HARTMAN VS. TRACY FLEMING, ET AL.

MICHAEL S. HARTMAN
TRACY FLEMING

PRO SE

AMENDED MOTION FOR LEAVE TO FILE THIRD AMENDED COMPLAINT

TENTATIVE RULING:

The Amended Motion of Plaintiff Michael S. Hartman (“Plaintiff”) for Leave to File Third Amended Complaint is GRANTED. (See *Morgan v. Superior Court of Cal. In and For Los Angeles County* (1959) 172 Cal.App.2d 527, 530 [If a motion to amend is timely made and will not prejudice the opposing party, it is error to refuse permission to amend.].) No defendant has appeared in this action, and therefore no prejudice has been shown in allowing the amended complaint to be filed and served. Based on the liberal policy allowing amendment, the court therefore grants the motion.

The current pleading is the First Amended Complaint. On May 13, 2026, Plaintiff filed a motion for leave to file a second amended complaint. Then, on June 12, 2026, Plaintiff filed this amended motion for leave to file a third amended complaint that he appears to claim supersedes the prior motion for leave. The court therefore considers only this amended motion. However, no second amended complaint has been filed. Therefore, in amending, Plaintiff is to label his proposed pleading (Exh. 1 to Plaintiff’s Amended Declaration) as the Second Amended Complaint instead of a third amended complaint.

Plaintiff is to file the Second Amended Complaint with the court by July 24, 2026, and serve it on Defendants within sixty (60) days of the filing. (Cal. Rules of Court, rule 3.110(b).) The court vacates the October 14, 2026 case management conference and resets the conference for Wednesday January 20, 2027 at 9:00 a.m. before the Civil Commissioner, 800 North Humboldt St., San Mateo CA, 94401. Zoom appearances are allowed.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 6

25-CIV-09923

SARA CRABA VS. HEADSPACE INC.

SARA CRABA
HEADSPACE INC.

STEVEN CHIZEN
CHRISTOPHER A. CROSMAN

DEFENDANT'S MOTION TO COMPEL ARBITRATION AND STAY ACTION PENDING ARBITRATION

TENTATIVE RULING:

This is an employment law case. Plaintiff Sara Craba has sued Defendant Headspace, Inc. for Wrongful Termination, Sex/Gender Discrimination (FEHA), Retaliation (FEHA), and Failure to Prevent Discrimination and Retaliation.

Defendant has moved to compel arbitration pursuant to an alleged Arbitration Agreement.

Defendant's motion is GRANTED.

LEGAL STANDARD

Defendant brings the instant Motion to ask the Court to compel Plaintiff to arbitrate this matter pursuant to the Federal Arbitration Act (9 U.S.C. § 1, et seq.) (the "FAA"), and pending arbitration, to stay this action (9 U.S.C. § 3; Code Civ. Proc., § 1281.4.).

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

The right to compel arbitration has been waived by the petitioner; or

Grounds exist for rescission of the agreement.

(Code Civ. Proc., ¶ 1281.2, subds (a) & (b).)

A party meets its burden to establish the existence of the arbitration agreement by providing a copy thereof to the Court, or by stating the paragraph verbatim. (*Baker v. Italian Maple Holdings, LLC* (2017) 13 Cal.App.5th 1152, 1160; Cal. Rules of Court, rule 3.1330.) The arbitration agreement has been placed before this Court. (Evans Decl., Ex. C.) Arbitration is proper when an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2.) The initial determination of whether the parties agreed to arbitrate the dispute in question "involves two considerations: (1) whether there is a valid agreement to arbitrate between the parties; and (2)

whether the dispute in question falls within the scope of that arbitration agreement.” (*Bruni v. Didion* (2008) 160 Cal.App.4th 1272, 1283.)

There is no dispute between the parties that the Defendant’s claims fall within the scope of the alleged Arbitration Agreement. Therefore, the analysis below concerns only part one, whether there is a valid agreement to arbitrate.

ANALYSIS

In California, general principles of contract law determine whether the parties have entered a binding agreement to arbitrate, and the party seeking arbitration bears the burden of proving the existence of an arbitration agreement.” (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842–843 [affirming denial of motion to compel arbitration where movant failed to submit an authenticated arbitration agreement].)

Although the party seeking arbitration bears the ultimate burden of proof as to the existence of an arbitration agreement, the burden of producing evidence on the issue may shift pursuant to a three-step process recognized by California courts. [] The first step requires the party seeking arbitration to carry the initial burden of presenting prima facie evidence of a written agreement to arbitrate the controversy. [] If that initial burden is met, the second step requires the party opposing arbitration to carry the burden of producing evidence to challenge the authenticity of the agreement. [] If the opposing party meets the burden of producing sufficient evidence, the third step requires the party seeking arbitration to prove by a preponderance of the evidence that the parties formed a valid contract to arbitrate their dispute.

Ramirez v. Golden Queen Mining Co., LLC (2024) 102 Cal.App.5th 821, 830 [citations omitted].)

The Court performs this three-step process in a summary fashion as the trier of fact, weighing all affidavits, declarations, and other documentary evidence to reach a final determination. (*Gamboa v. Northeast Comm. Clinic* (2021) 72 Cal.App.5th 158, 165 (*Gamboa*).) First, the moving party need only “attach[] to the motion or petition a copy of the arbitration agreement purporting to bear the opposing party’s signature.” (*Ibid.*) “For this step, it is not necessary to follow the normal procedures of document authentication.” (*Ibid.*) Second, “if the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then ... the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (*Ibid.*) Third, only if the opposing party meets that burden of production, does the moving party then have to “establish with admissible evidence a valid arbitration agreement between the parties.” (*Ibid.*)

As to step one, Defendant provides a copy of the executed Arbitration Agreement. (Evans Decl., ¶ 18, Ex. C.) Thus Defendant satisfies the first step.

As to step two, Plaintiff claims:

I do not recall physically receiving, or receiving via email, electronic means, or through a job onboarding portal, a binding arbitration agreement from Headspace or its agents to sign, and, on information and belief, did not receive a binding arbitration agreement from Headspace or its agents to sign.

I have diligently searched my email, electronic files, and physical files and do not have in my possession any email, electronic file, or physical file relating to an arbitration agreement from Headspace. I did not knowingly delete or destroy any emails, electronic files, or physical files related to Headspace onboarding and/or arbitration related documents.

I do not recall physically signing a binding arbitration agreement with Headspace, or signing a binding arbitration agreement with Headspace via email, a job onboarding portal, or by any other electronic means including e-signature, and, on information and belief, did not sign or e-sign a binding arbitration agreement with Headspace.

I read all the documents that I signed as part of the onboarding process with Defendant and would have remembered if I reviewed and/or signed an arbitration agreement. I do not recall being asked to sign any arbitration agreement as part of my onboarding process with Headspace. Nobody affiliated with Headspace ever provided me with any information about what arbitration is, what arbitration means, or that I would be waiving my right to sue in court or my right to a jury trial if I signed any documents that Headspace provided to me.

I have personally read, reviewed, and am familiar with all the moving papers that Defendants filed in connection with their Motion to Compel Arbitration, including the purported arbitration agreement (Exhibit C). I do not recall electronically signing the arbitration agreement in that Exhibit.

(Craba Decl., ¶¶ 4-6, 8, 9.) The Court finds this sufficient to shift the burden back to Defendant to establish a valid arbitration agreement by a preponderance of evidence. (*Gamboa, supra*, 72 Cal.App.5th at p. 165-66 [acknowledging opposing party may challenge authenticity of arbitration agreement by declaring under penalty of perjury that they do not remembering seeing or signing the agreement].)

As to step 3, Defendant submits evidence sufficient to establish a valid arbitration agreement through the Declaration of Lindsey Evans, Senior Director of People Operations at Headspace, Inc. Ms. Evans also submitted a Supplemental Declaration with Defendant's Reply.

Headspace uses an electronic onboarding platform called UKG. (Evans Decl., ¶ 4.) When a new employee's name is entered into UKG, the system automatically sends an email to the employee's personal email address. (*Id.*, ¶ 7.) The email instructs the user to click a link to create

a password, enter their personal email address, and then retrieve and enter a verification code to set up a secure password so that the employee may initiate the onboarding process. (*Id.*, ¶ 9.) The onboarding can only begin after completing this step. (*Ibid.*) Headspace does not have access to any employee's UKG password. (*Ibid.*)

Once logged in, all required onboarding tasks are listed, including reviewing and signing the arbitration agreement. (*Id.*, ¶ 10.) The employee is required to enter their full name and affirmatively consent to the use of that name as their electronic signature. (*Id.*, ¶ 11.) Once the employee provides electronic signature consent, UKG directs the employee to proceed to the Company Documents section, which lists all the policies and agreements that must be reviewed, acknowledged, or signed – including Headspace's Arbitration Agreement. (*Id.*, ¶ 12.) The system does not allow the employee to move past any document until it is completed. (*Id.*, ¶ 13.) If anything document remains unsigned, the system displays a validation notice and prevents further progress. (*Ibid.*)

The arbitration agreement is among the onboarding documents presented to all employees. (*Id.*, ¶ 14.) When an employee opens the document, the full text of the Arbitration Agreement is displayed and the employee's name is populated at the top of the first page of the Agreement. (*Ibid.*) After reviewing the document, the employee must manually click to electronically sign the Agreement in the signature field at the end of the document. (*Id.*, ¶ 15.) The signature is only applied after the employee affirmatively clicks to sign. (*Ibid.*)

After completing all required documents, the employee is shown a summary list of all the documents reviewed, acknowledged, or signed, and the employee may download copies for their personal records. (*Id.*, ¶ 16.) The employee must click "Next" to advance to the final screen, which again includes a summary of all completed documents. (*Ibid.*) The onboarding process is only complete after the employee clicks "Submit" on the final screen, at which point Headspace receives confirmation through UKG and the employee is moved into Headspace's HR system. (*Id.*, 17.)

Ms. Evans declares that Plaintiff completed the onboarding process, including signing the Arbitration Agreement on February 17, 2022, and could not have done so other than completing the process described above. (*Id.*, ¶ 18, 19.) Upon completion of onboarding, UKG automatically stored Plaintiff's executed onboarding documents, including the Mutual Agreement to Arbitrate, in Headspace's personnel records system. (Supp. Evans Decl., ¶ 17.)

Plaintiff argues that the facts here are analogous to *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 840-41, where the Court found the defendant failed to show that the plaintiff electronically signed the arbitration agreement. There, Defendant's supporting declaration established that each employee was required to log into the company's HR system with their unique login credentials to review and execute the arbitration agreement. (*Ibid.*) However, Defendant failed to provide further evidence to show that the plaintiff *himself* signed the agreement. (*Ibid.*) Plaintiff argues that, like *Ruiz*, Defendant relies on the assumption that because all new hires had to fill out paperwork that required signatures, Plaintiff must have signed the contract. Plaintiff further argues that the Evans Declaration does prove that any email

was ever sent to Plaintiff and contains no evidence of DocuSign, or other e-signature software, no email trail, no onboarding e-portal information for Plaintiff, and no metadata.

Defendant argues that the facts here are analogous to *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1062, where the Court of Appeal held that the defendant had sufficiently authenticated an electronic signature challenged by the plaintiff.

In *Espejo*, the defendant submitted evidence of an electronic review and signature process for employees that included: a link to the employer's platform for onboarding; providing employees with a private username and password by phone; employees re-setting the password to a unique one of their choice once logged in; a prompt requiring the employee to agree to complete the employee documents with an electronic signature; hyperlinks to each required document; finalizing the employees signed acceptance with his name, date, time, and the IP address where the employee electronically signed. (*Espejo, supra*, 246 Cal.App.4th at 1053-54.) The Court of Appeal held that this evidence "offered the critical factual connections that the declarations in *Ruiz* lacked."

The Court agrees with Defendant that the facts here are analogous to those in *Espejo*. Here, as described above, Defendant's process for onboarding employees included: an "Welcome Email" sent to the employee's private email address; a link in the Welcome Email to prompting the employee to – after retrieving a confirmation code sent to their personal email – create secure login credentials (which are unknown to Defendant) to the onboarding platform; the requirement that the employee consent to using an electronic signature; links to the required documents, including the Agreement, without the ability to complete the onboarding process before executing all the required documents; an affirmative clicking action required to sign the Arbitration Agreement; a review page summarizing all the documents reviewed and allowing the employee to save documents for their records; and storage of executed onboarding documents, including executed Arbitration Agreements, in Defendants' personnel records. (See Evans Decl. and Supp. Evans Decl.) While Defendant's system does not document the IP address used by employees, *Espejo* does not single that fact out as dispositive. The Court finds that process here is substantially identical to that in *Espejo*.

Notably, while Plaintiff denies specifically receiving a binding arbitration agreement by email or any other means (Craba Decl., ¶ 4), Plaintiff does not deny receiving the "Welcome Email" described in paragraphs 7-9 of the Evans Declaration, which includes a link to initiate the onboarding process. Moreover, Plaintiff does not deny going through the onboarding process. In fact, Plaintiff claims that she read all the documents she signed as part of the onboarding process and thus acknowledges having gone through and completed that process. (Craba Decl., ¶ 8.)

Plaintiff claims that she "did not knowingly consent to using my typeface name as my signature on any arbitration agreement with Headspace." (Craba Decl., ¶ 7.) But as explained in the Evans Declaration, the onboarding process – which Plaintiff acknowledges she completed – "requires the individual to enter their full name and affirmatively consent to the use of that name as their electronic signature." (Evans Decl., ¶ 11.) Separately, users must "manually click to

electronically sign the required signature field” of the Agreement; “the signature is applied only after the employee affirmatively clicks to sign.” (Evans Decl., ¶ 15.)

The Court finds that the evidence presented by Defendant concerning onboarding process, including the necessity of executing the arbitration agreement in order complete that process, is sufficient to authenticate Plaintiff’s electronic signature on the executed Arbitration Agreement presented by Defendant, over Plaintiff’s general claim that she does not recall the Agreement being part of the onboarding process. In the consumer context, transactions done on a website--the app appears to act like a website “a manifestation of assent may be inferred from the consumer’s actions on the website—including, for example, checking boxes and clicking buttons.” (*Sellers v. JustAnswer LLC* (2021) 73 Cal.App.5th 444, 461.) “Courts have generally enforced agreements to arbitrate formed via ‘clickwrap,’ where “ ‘an internet user accepts a website’s terms of use by clicking an ‘I agree’ or ‘I accept’ button, with a link to the agreement readily available.” ’ ” (*Weeks v. Interactive Life Forms, LLC* (2024) 100 Cal.App.5th 1077, 1084–1085.) “Clickwrap agreements have been held to manifest assent, even on consumers who did not read them, because ‘the website [has] put[] the consumer on constructive notice of the contractual terms.’ ” (*Id.* at p. 1085; see *Lelley, Terms of Use* (2006) 91 *Minn. L. Rev.* 459, 466 [“Because the user has ‘signed’ the contract by clicking ‘I agree,’ every court to consider the issue has held clickwrap licenses enforceable.”]) The Court reaches the same context in this employment context, where Plaintiff had the ability to ask questions of the employer who uses onboarding through a computer.

Defendant has established the existence of a valid arbitration contract governing the claims brought by Plaintiff in this action. Accordingly, Defendant’s motion to compel is GRANTED.

The Court further GRANTS Defendant’s request to stay this action in its entirety pending the completion of arbitration by the parties.

The Court sets a case management conference for February 2, 2027 at 9:30 a.m. with a joint case management statement due five court days before the conference. If the parties want to advance or continue the conference, they shall jointly email Department 4 and propose a new date (a Tuesday at 9:30 a.m.).

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Defendant shall prepare for the Court’s signature a written order consistent with the Court’s ruling, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM

LINE 7

25-CLJ-06965

TD BANK USA, N.A. VS. ALVARO J ESPINOSA

TD BANK USA, N.A.
ALVARO J ESPINOSA

DONALD SHERRILL
CHRISTINA TOROYAN

MOTION TO BE RELIEVED AS COUNSEL FOR DEFENDANT ALVARO ESPINOSA

TENTATIVE RULING:

The court rules on the motion of Paul Eum and Deborah Lee to be relieved as counsel for defendant Alvaro Espinosa as follows:

If defense counsel demonstrates service on defendant and plaintiff's counsel of the proper hearing date, then the motion is GRANTED. The order does not become effective until notice of entry of order on the defendant.

In the notice of motion, plaintiff put the date of May 5, 2026 as the hearing date, but the clerk's office changed the hearing date to July 14, 2026. The court file shows a proof of service filed April 9, 2026 of the motion showing service of the motion on defendant and plaintiff's counsel on April 9, 2026. Thus, based upon the change of hearing date by the clerk, plaintiff could not have provided on April 9, 2026 proper notice of the July 14, 2026 hearing. On April 29, 2026, defense counsel filed a proof of service showing proof of service by mail on defendant. However, it is unclear whether defendant was served with notice of the hearing date of May 5 or July 14, 2026. There is no amended proof of service on plaintiff's counsel of an amended notice with the court date. Therefore, it is unclear if defendant and plaintiff's counsel receive proper notice of the hearing date. (Cal. Rules of Court, rule 3.1110(b)(1).) Without proper notice on defendant and plaintiff's counsel, the court cannot consider the motions. (See *Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [court lacks jurisdiction to rule on a motion that has not been properly noticed].)

Accordingly, if defense counsel can show proper service or a waiver of service, counsel shall properly contest the tentative ruling, and by 11:00 a.m. on July 14, 2026, file a declaration showing that both defendant and plaintiff's counsel received proper notice of the hearing or showing a waiver of notice, and then at the hearing the court will grant the motion. If these conditions are not met, court must deny the motion.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendant shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

If the motion is granted, the mandatory Judicial Council form must be changed to reflect the new case management conference date of January 6, 2027 at 10:00 a.m.

2:00 PM

LINE 8

25-CLJ-07707

TD BANK USA, N.A. VS. JANNETTE MADARANG

TD BANK USA, N.A.
JANNETTE MADARANG

DANIEL ODITT
PRO SE

MOTION FOR JUDGMENT ON THE PLEADINGS

TENTATIVE RULING:

Plaintiff's unopposed motion for judgment on the pleadings is denied without prejudice.

The notice of motion, plaintiff put the date of June 30, 2026 as the hearing date, but the clerk's office changed the hearing date to July 14, 2026, and the location was corrected to show that the hearing would be in Department 4 rather than in Department 18 as plaintiff noticed the motion. The court file shows a proof of service filed May 20, 2026 of the motion showing service of the motion on defendant on May 20, 2026. Thus, based upon the change of hearing date by the clerk, plaintiff could not have provided on May 20, 2026 proper notice of the July 14, 2026 hearing and proper department to defendant. There is no amended proof of service in the court file. Therefore, defendant did not receive proper notice of the hearing date or location. (Cal. Rules of Court, rule 3.1110(b)(1).) Accordingly, defendant does not have proper notice of the hearing and the court cannot consider the motions. (See *Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [court lacks jurisdiction to rule on a motion that has not been properly noticed].)

The court strikes the prematurely filed memorandum of costs. The memorandum of costs is filed after judgment is entered.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 9

26-CIV-00808

TREMIN CORPORATION VS. MICHAEL HARBOUR, ET AL.

TREMIN CORPORATION
MICHAEL HARBOUR

PATRICK J. WHITEHORN
CHARLES S. BRONITSKY

DEMURRER TO CROSS-COMPLAINT OF MICHAEL HARBOUR AND ANDRES MEDIAVILLA

TENTATIVE RULING:

Cross-Defendants Tremin Corporation's and Derek Gray's demurrer to the Cross-Complaint of Cross-Complainants Michael Harbour and Andres Mediavilla filed April 23, 2026, is **SUSTAINED IN PART and OVERRULED IN PART**. Leave to amend is **GRANTED**.

Defendants' Request for Judicial Notice of Cross-Complainants Michael Harbour's and Andres Mediavilla's Cross Complaint filed in San Mateo County Superior Court on April 23, 2026, attached to the declaration of counsel Patrick J. Whitehorn as Exhibit A in support of their Demurrer to Cross-Complaint of Michael Harbour and Andres Mediavilla, is **GRANTED**. (Evid. Code § 452, subd. (d).)

A. Background

This is a breach of construction contract action regarding work done by plaintiff/cross-defendants, a builder and general contractor on real property owned by defendants/cross-complainants at 29 De Bell Drive, Atherton, CA 94122 (the "subject property").

On or about December 9, 2021, plaintiff orally agreed with defendants to furnish all labor, materials, equipment and other facilities required to complete work making significant improvements to the subject property based on plans supplied by Harbour and prepared by his architect. Between December 9, 2021, and November 5, 2025, Tremin substantially performed work at the subject property but was not paid in full. Therefore, on November 5, 2025, Tremin recorded a mechanic's lien against the subject property for the unpaid amounts. On February 2, 2026, plaintiff filed the underlying complaint which raises four causes of action.

On April 23, 2026, Defendants Harbor and Mediavilla filed a cross-complaint alleging violations of Business and Professions Code section 7159; violation of Business and Professions Code section 17200; Fraud; Negligent Misrepresentation and Declaratory Relief. The cross-complaint alleges that Tremin and Gray (in his individual capacity) violated the Home Improvement Contract Act under Business and Professions Code § 7159 by failing to have a written contract and other requirements and thus engaged in unfair business practices. Defendants/Cross-Complainants Harbor and Mediavilla further allege that Tremin and Gray falsely represented in 2021 that they would reduce the project cost through a value engineering exercise, failed to

provide evidence that subcontractors and material suppliers were paid, and then stopped work prior to completion leaving the property in a state of disrepair.

On May 15, 2026, Cross-Defendants Tremin Corporation and Derek Gray demurred to all five causes of action raised in the cross-complaint for failing to allege any facts regarding why Gray is *individually* liable for any causes of action and because the Cross-Complaint in its entirety fails to allege a sufficient factual basis pursuant to Code of Civil Procedure section 430.10, subdivision (e) for any of the causes of action. Additionally, the cross-complaint fails to sufficiently allege the fraud and negligent misrepresentation causes with the specificity required by the law. Lastly, the negligent misrepresentation claim fails because it is based on a promise to perform in the future and not a past or existing material fact. (See *Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 158.) Cross defendants contend that demurrer should be sustained without leave to amend.

The motion is opposed on the basis that Gray is not merely an agent employed by the corporation; he is the responsible managing officer, without whom the corporation could not engage in the construction business, and he was the one who made the misrepresentations and committed the torts alleged in the Cross-Complaint and that a sufficient factual basis for each cause of action has been pled.

B. Legal Standard

“[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation].” (*John’s Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013 [quoting *Alcorn v. Anbro Engineering, Inc.* (1970) 2 Cal.3d 493, 496].) A court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*Id.* at 1008, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), but does not “assume the truth of contentions, deductions or conclusions of law.” (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.) Rather, the “demurrer tests the sufficiency of the plaintiff’s complaint, i.e., whether it states facts sufficient to constitute a cause of action upon which relief may be based.” (*Villarroel v. Recology, Inc.* (2023) 97 Cal.App.5th 762, 772, quoting *McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1469.) Courts “assume the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded, and matters of which judicial notice has been taken.” (*Fremont Indemnity Co v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 111.) “All that is required of a plaintiff, as a matter of pleading ... is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action.” (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 156-157 [Citation and internal quotations omitted].)

C. Discussion

Initially, the Court finds the parties satisfied their meet and confer requirement but were unable to reach a resolution. (Declaration of Patrick J. Whitethorn iso Demurrer, ¶ 5.)

First Cause of Action: Violation of Business & Professions Code, section 7159

The cross-complaint alleges Cross-Defendants violated each and every one of the requirements of California Business & Professions Code Section 7159 (section 7159) in at least the following ways:

- a. Failing to provide a written contract;
- b. Failing to provide a fixed price for the work of construction;
- c. Failure to provide a detailed payment schedule for the work;
- d. Failing to provide a start of estimated completion date;
- e. Failing to provide for a change order process;
- f. Failing to obtain written subcontracts;
- g. Billing for work not performed and for materials not delivered to the site;
- h. Obtaining deposits in excess of \$1,000;
- i. Failing to adequately supervise and manage the project;
- j. Failing to complete the project; and
- k. Charging excessive labor rates and subcontractor markup.

(Cross-Defendant's Request for Judicial Notice, Ex. A, Cross-Complaint "CC" ¶ 23.)

Business and Professions Code section 7159 requires that home improvement contracts between a contractor and owner for work upon a building for repair or remodeling where the aggregate contract price exceeds \$500 shall be in writing. The statute applies to " 'home improvement contracts' between a contractor and an 'owner or tenant' for 'work upon a building or structure for proposed repairing [or] remodeling' where the aggregate contract price exceeds \$500." (*Hinerfeld-Ward, Inc. v. Lipian* (2010) 188 Cal.App.4th 86, 91.)

None of the cases the parties cite are directly on point and the parties do not analyze whether section 7159 creates a private cause of action. Cross-Defendants' case, *Swickheimer v. King* (1971) 22 Cal.App.3d 220, holds that other sections of the Business & Professions Code do not state a cause of action, but Cross-Defendants do not explain how the reasoning in the case extends to section 7159, a different statute. Cross-complainants' cases stand for the proposition that a contractor can collect, under certain circumstances, based upon an oral contract notwithstanding section 7159. The cases did not address whether a private right of action existed. In the Court's experience, section 7159 is used as a defense by a homeowner to a suit by a contractor for unpaid amounts under the contract. The parties do not cite, and the Court is not aware of any case deciding the issue of whether section 7159 provides a private right of action for affirmative relief.

As our Supreme Court has explained:

A violation of a state statute does not necessarily give rise to a private cause of action. Instead, whether a party has a right to sue depends on whether the Legislature has “manifested an intent to create such a private cause of action” under the statute. Such legislative intent, if any, is revealed through the language of the statute and its legislative history.

A statute may contain “ ‘clear, understandable, unmistakable terms,’ ” which strongly and directly indicate that the Legislature intended to create a private cause of action. For instance, the statute may expressly state that a person has or is liable for a cause of action for a particular violation. Or, more commonly, a statute may refer to a remedy or means of enforcing its substantive provisions, i.e., by way of an action. If, however, a statute does not contain such obvious language, resort to its legislative history is next in order.

(*Lu v. Hawaiian Gardens Casino, Inc.* (2010) 50 Cal.4th 592, 596–597 [citations omitted].)

Following this analytical framework, on the face of the statute, there is no language expressly stating that a homeowner or other aggrieved party has a cause of action for a contractor's violation of its requirements and the statute also does not refer to any remedy or means of enforcing its provisions by way of a private action. The Court does not have the Legislative History.

Since it is Cross-Complainants’ burden to show they can state a cause of action under section 7159 and that showing has not yet been made, the Court SUSTAINS with leave the demurrer to this cause of action. Further research, especially into the Legislative history, may support Cross-Complainants’ position. This ruling is not to preclude Cross-Complainants from arguing non-compliance, as set forth in the case law, assuming that defense has been properly pled.

Second Cause of Action: Violation of Business & Professions Code, section 17200

“California’s unfair competition law (UCL) ([Business & Professions Code] § 17200 *et seq.*) defines ‘unfair competition’ to mean and include “any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising and any act prohibited by [the false advertising law (§ 17500 *et seq.*)].’ (§ 17200.) The UCL's purpose is to protect both consumers and competitors by promoting fair competition in commercial markets for goods and services. (*Barquis v. Merchants Collection Assn.* (1972) 7 Cal.3d 94, 110, 101 Cal.Rptr. 745, 496 P.2d 817.) [¶]The UCL’s scope is broad. By defining unfair competition to include any “unlawful ... business act or practice” (§ 17200, *italics added*), the UCL permits violations of other laws to be treated as unfair competition that is independently actionable. (*Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180, 83 Cal.Rptr.2d 548, 973 P.2d 527.)” (*Kasky v. Nike, Inc.* (2002) 27 Cal.4th 939, 949 (*Kasky*).) Fraudulent practices extend beyond those covered by the common law tort and include any practices that are likely to deceive members of the public. (*Buller v. Sutter Health* (2008) 160

Cal.App.4th 981, 986.) The UCL may only be privately enforced “by a person who has suffered injury in fact and has lost money or property as a result of the unfair competition.” (Bus. & Prof. Code § 17204.)

The cross-complaint bases the UCL claim on the violation of Business & Professions Code 7159 by engaging in the conduct that is a violation of that section as described in the first cause of action. (CC ¶ 26.)

Cross-defendants contend that section 7159 cannot form the basis for the UCL claim because a violation of section 7159 is not an unlawful act. However, the failure to comply with section 7159 is a violation of the law and even if it just subjects the cross-defendants to discipline with the contractor’s board, the statute can serve as the basis for a cause of action. (*Kasky, supra*, 27 Cal.4th at p. 949-950; *Bus. & Prof.C. §§ 7.5 et seq.* (TRG (Oct. 2025 update) [and cases cited therein].)

The cross-complaint alleges that both cross-defendants committed the unlawful acts and thus both can be held liable.

Accordingly, demurrer as to the second cause of action for unfair business practices as to both cross-defendants is OVERRULED. The court notes, however, that the cause of action seeks damages, which are not allowed under the UCL—only restitution or injunction are allowed. (*Kasky, supra*, 27 Cal.4th at p. 950.) Since cross-defendants did not raise this argument, the court does not consider it for ruling on this demurrer, but to bring it to the parties attention to avoid unnecessary motion practice in the future.

Third Cause of Action: Fraud

“The elements of intentional misrepresentation ‘are (1) a misrepresentation, (2) knowledge of falsity, (3) intent to induce reliance, (4) actual and justifiable reliance, and (5) resulting damage.’ (*Chapman v. Skype Inc.* (2013) 220 Cal.App.4th 217, 230–231 [162 Cal.Rptr.3d 864].)” (*Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1245.)

Fraud must be alleged with sufficient specificity for defendant to fully understand the nature of the charge. (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) Generally, such specificity requires pleading facts that “show how, when, where, to whom, and by what means the representations were tendered.” (*Ibid.*) Less specificity, however, is required then the defendant “must necessarily possess full information concerning the facts of the controversy. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of California* (2016) 245 Cal.App.4th 821, 838; see also *Committee On Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 217; *Tarmann v. State Farm Mutual Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 158.) Further, a single representation is sufficient to support a fraud claim. (*OCM Principal Opportunities Fund, L.P. v. CIBC World Markets Corp.* (2007) 157 Cal.App.4th 835, 854; *Alliance Mortgage Co. v. Rothwell* (1995) 10 Cal.4th 1226, 1248.)

Cross-Defendants contend that the cross-complaint lacks the requisite specificity regarding when and who made misrepresentations about the project. The cross-complaint alleges that Cross-Defendants represented in 2021 that they would value engineer the project and materially reduce costs. (CC ¶ 30.) It also alleges that cross-defendants “represented in 2021 that they would value engineer the project and materially reduce the cost for the addition and new ADU” (CC ¶ 13) and they “repeatedly promised to provide a fixed price for the work, which they never delivered.” (CC ¶ 19.)

While less specificity is required when the Cross-Defendant has full knowledge of the facts, which is true in this case, the allegations are so general that even a cross-defendant with full knowledge of the facts cannot determine the specifics of the representations. At a minimum, the cross-complaint must identify by name or some other identifying representation who made the representation, to whom it was made and some more specific date (or other information to help cross-defendants determine when the alleged representation was made) other than during a year, i.e., 2021, or state that the representations were made “repeatedly.” Thus the court SUSTAINS with leave to amend the demurrer to the third cause of action.

The court does not reach the other arguments raised by Cross-Defendants to this cause of action.

Fourth Cause of Action: Negligent Misrepresentation

“The elements of negligent misrepresentation are well established. A plaintiff must prove the following in order to recover. ‘[M]isrepresentation of a past or existing material fact, without reasonable ground for believing it to be true, and with intent to induce another's reliance on the fact misrepresented; ignorance of the truth and justifiable reliance on the misrepresentation by the party to whom it was directed; and resulting damage....’ ” (*Shamsian v. Atlantic Richfield Co.* (2003) 107 Cal.App.4th 967, 983, 132 Cal.Rptr.2d 635.)

(*Hydro-Mill Co., Inc. v. Hayward, Tilton & Rolapp Ins. Associates, Inc.* (2004) 115 Cal.App.4th 1145, 1154.)

Here, for the same reasons as the fraud cause of action, the court SUSTAINS with leave the demurrer to the fourth cause of action, which cause of action is plead as an alternative ground to the first cause of action. Based upon the lack of specificity, the court cannot tell if alleged representations regarding future events are sufficient under the law to constitute a case of action.

Fifth Cause of Action: Declaratory Relief

To qualify for declaratory relief under section 1060, cross-complainants must show

“(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party.” (*Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410, 256 Cal.Rptr. 240 (*Brownfield*)). “The ‘actual controversy’ language in ... section 1060

encompasses a probable future controversy relating to the legal rights and duties of the parties.” (*Environmental Defense Project of Sierra County v. County of Sierra* (2008) 158 Cal.App.4th 877, 885, 70 Cal.Rptr.3d 474.) It does not embrace controversies that are “conjectural, anticipated to occur in the future, or an attempt to obtain an advisory opinion from the court.” (*Brownfield*, at p. 410, 256 Cal.Rptr. 240.)

(*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546.)

Here, cross-defendants argue there is no actual controversy because “[a]djudication of the other causes of action will necessarily determine the rights and duties of the parties, making a Declaratory Relief claim superfluous.” Superfluosity, however, is not the test on demurrer. Rather, the Court determines whether the allegations and facts set forth in the cross-complaint place cross-defendants on notice of the charge against them. Here, the cross-plaint alleges that there is an actual controversy between cross complainants and cross-defendants regarding their rights and duties under the alleged oral agreement, what is owed, whether the contract is illegal and therefore unenforceable, whether cross-defendants overcharged for the work they did and if cross-complainants are entitled to a refund. (CC ¶¶ 38, 39.)

Accordingly, the Court OVERRULES the demurrer as to the fifth cause of action.

Cross-complainants have ten (10) days from service of written notice of entry of order to file and serve a First Amended Cross Complaint. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc., § 472b.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for cross-defendants shall prepare a written order consistent with the Court’s ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 10

26-CIV-01557

VICTOR MONTOKA, ET AL. VS. HYUNDAI MOTOR AMERICA

VICTOR MONTOKA
HYUNDAI MOTOR AMERICA

MICHAEL J. AVILA
ALI AMERIPOUR

DEFENDANT'S MOTION TO COMPEL BINDING ARBITRATION

TENTATIVE RULING:

Defendant Hyundai Motor America's Motion to Compel Binding Arbitration is GRANTED.

Defendant Hyundai Motor America's Request for Judicial Notice is GRANTED.

Defendant Hyundai Motor America ("Hyundai") seeks to compel the claims asserted against it by Plaintiffs Victor Montoya and Anne Montoya (collectively, the "Montoyas") to arbitration, based on an agreement to arbitrate located in section 4 of the 2023 Owner's Handbook & Warranty Information (the "Handbook") that accompanied the vehicle that is the subject of this action when sold to the Montoyas.

Agreements to arbitrate are valid, irrevocable, and enforceable. (9 U.S.C. § 2; Code Civ. Proc., § 1281.) When litigating parties have agreed to arbitrate a dispute, either party may petition or move for an order compelling the dispute to arbitration and staying judicial proceedings. (See, e.g., 9 U.S.C. §§ 3–4.) Both federal and California public policy favor arbitration and the enforcement of agreements to arbitrate according to their terms. (See *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339; *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.)

"[T]he threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate." (*Long v. Provide Commerce, Inc.* (2016) 245 Cal.App.4th 855, 861, quoting *Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) "This threshold inquiry stems from the basic premise that arbitration is consensual in nature. Thus, while California public policy favors arbitration, there is no policy compelling persons to accept arbitration of controversies which they have not agreed to arbitrate." (*B.D. v. Blizzard Entertainment, Inc.* (2022) 76 Cal.App.5th 931, 943 [quotation marks omitted].)

The procedure by which courts in this state determine whether an agreement to arbitrate exists is governed by California statutes, even where the agreement is expressly governed by the Federal Arbitration Act. (*Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394 ("Rosenthal"), 409–410.) Under California law, a petition to compel arbitration shall be summarily heard in the manner provided by law for the making and hearing of motions. (Code of Civ. Proc., § 1290.2.) Arbitration will be ordered as long as the court finds an agreement to arbitrate exists, absent limited exceptions. (*Id.*, at § 1281.2.) "Because the existence of the

agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence.” (*Rosenthal*, at p. 413.)

Here, Hyundai carries this burden. It provides a copy of the Handbook (Apr. 8, 2026 Declaration of Ali Maeripour, exh. 2 (“Handbook”)), and the Montoyas do not dispute nether its authenticity nor Hyundai’s representation that it accompanied the vehicle and constitutes the express written warranty referenced by the Complaint. The Handbook provides in relevant part:

If you purchased or leased your Hyundai vehicle in the State of California, you and we, Hyundai Motor America, each agree that any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty, including without limitation claims related to false or misleading advertising, unfair competition, breach of contract or warranty, the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle’s purchase price (excluding personal injury claims), but excluding claims brought under the Magnuson-Moss Warranty Act, shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law.

(*Id.*, at p. 12.) The Handbook further provides that requesting benefits or having repairs performed under the warranty contained therein constitutes acceptance and binds the owner to the terms of the arbitration provision. (*Id.*, at p. 14.) While not all warranties constitute bilateral contracts, the warranty here was offered subject to the agreement to arbitrate, rendering its interpretation and enforcement subject to normal contract law. (See *ibid.* [“if you purchased or leased your vehicle in California, your warranty is made subject to the terms of this binding arbitration provision” (all-capitals omitted)].)

The claims in the Complaint easily fall within the scope of the arbitration agreement. (See Feb. 27, 2026 Complaint, *passim* [asserting claims for breach of warranties and unfair competition].) It also alleges that the Montoyas presented the vehicle to Hyundai for repair under warranty, which demonstrates their acceptance of the Handbook’s terms. (See *id.*, at ¶¶ 13–14.)

The Montoyas contend that, because neither they nor Hyundai signed the arbitration agreement, it cannot be enforced. But is established contract law that a signed writing is not necessary in every case to bind each party. (See, e.g., *O’Donnell v. Lutter* (1945) 68 Cal.App.2d 376, 382–383.) Only when a contract makes clear that its enforceability is contingent upon all or some of the parties signature are signatures are necessary for formation. (See *Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 358.) Here, the offer stated the terms of acceptance, and the Montoyas affirmatively manifested their objective assent by requesting and receiving warranty benefits and repairs. Furthermore, as Hyundai points out, the Montoyas are estopped from challenging the enforceability they themselves seek to enforce. (See Civ. Code, § 1589; *Boucher v. Alliance Title Co., Inc.* (2005) 127 Cal.App.4th 262, 269; *Windsor Mills, Inc. v.*

Collins & Aikman Corp. (1972) 25 Cal.App.3d 987, 992; Complaint, ¶ 13; see also Civ. Code, § 1793.2, subd. (a) [consumer protection statutes, on which Montoyas' causes of action are based, are entirely dependent on issuance of express warranty] .)

The Montoyas also contend that Hyundai's arguments are foreclosed by *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, but the opinion has little bearing on the present case. In that opinion, the issues were (1) whether a defendant manufacturer could enforce an arbitration agreement contained in the sales contract between the plaintiff and the dealership as a third-party beneficiary and (2) whether a plaintiff was estopped from disputing the agreement's enforceability when suing upon a warranty separate from the sales contract containing the agreement. (*Ford Motor Warranty Cases, supra*, at pp. 1128–1138.) The present case involves an arbitration agreement in a contract made directly between the Montoyas and Hyundai, a contract the Montoyas explicitly seek to enforce.

The Montoyas' final contention is that the arbitration agreement is unconscionable, which is their burden to establish. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236 (“*Pinnacle*”).)

The general law regarding unconscionability is well-established. Unconscionability has both a procedural and substantive element, and both must be found in order for a court to exercise its discretion to refuse to enforce a contract or clause based on unconscionability. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.) Procedural unconscionability looks at the process surrounding the contract formation, and focuses on “oppression” or “surprise” due to unequal bargaining power. (*Ibid.*) Substantive unconscionability applies such that even if a contract or provision is consistent with the reasonable expectations of the parties, the contract or provision will not be enforced if it is “overly harsh” or has “one-sided” results. (*Ibid.*) Although both procedural and substantive unconscionability must be found, they need not be present in the same degree. (*Ibid.*) In other words, the more substantively oppressive a provision or contract, the less evidence of procedural unconscionability is required, i.e. a “sliding” scale is invoked. (*Ibid.*; see also *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 910 (“*Sanchez*”).)

Procedural unconscionability pertains to the making of the agreement; it examines the “oppression that arises from unequal bargaining power and the surprise to the weaker party that results from hidden terms or the lack of informed choice.” (*Ajamian v. CantorCO2e, L.P.* (2012) 203 Cal.App.4th 771, 795).

Substantive unconscionability refers to agreement terms which are “overly harsh,” “unduly oppressive,” “unreasonably unfavorable,” or “so one-sided as to shock the conscience,” all of which mean the same thing. (*Sanchez, supra*, 61 Cal.4th at pp. 910-911.) The test is whether the terms impair the integrity of the bargaining process or otherwise contravene public policy, or the terms “attempt to alter in an impermissible manner fundamental duties otherwise imposed by the law” or “negate the reasonable expectations of the nondrafting party.” (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1145 [internal quotes omitted]; see also *Carbajal v. CWPSC,*

Inc. (2016) 245 Cal.App.4th 227, 247 [courts must consider the extent to which a disputed term is “outside the reasonable expectation of the nondrafting party or is unduly oppressive”].)

According to the Montoyas, the arbitration agreement is procedurally unconscionable because (1) Hyundai made no effort to provide notice to the Montoyas of the existence of the agreement prior to purchase of the vehicle, apart from notice in the Handbook itself, and thus they were surprised by its terms, (2) the agreement is a contract of adhesion, (3) the Handbook does not explain the differences between arbitration and litigation in court nor sets forth the American Arbitration Association’s rules that will govern any arbitration. However, the Montoyas are equitably estopped from claiming surprise or unfairness; their exploitation of the warranty—the terms of which are unmistakably *prefaced* by the arbitration agreement—and acceptance of its benefits precludes this argument. The Montoyas cannot avoid the obligations of the contract, whether or not they knew its terms and their consequences before purchase.

Furthermore, the Montoyas were able to avoid the agreement by opting out. “[F]reedom to choose whether or not to enter a contract of adhesion is a factor weighing against a finding of procedural unconscionability.” (*Gentry v. Superior Court* (2007) 42 Cal.4th 443, abrogated on other grounds as stated in *Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 359–360.) While there still “may be procedural unconscionability if there is not ‘an authentic informed choice’ to make that decision,” there is no evidence showing that the Montoyas were not aware of their ability to opt out or otherwise did not freely choose to accept the arbitration agreement by electing not to reject it. (*Haydon v. Elegance at Dublin* (2023) 97 Cal.App.5th 1280, 1288.)

Lastly, “The fact that [a plaintiff] either chose not to read or take the time to understand [the] provisions is legally irrelevant.” (*Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 383; see also *Pinnacle, supra*, 55 Cal.4th 223, 226 [“An arbitration clause within a contract may be binding on a party even if the party never actually read the clause.”].) A company is not required to highlight an arbitration clause of its contract nor is it required to specifically call the agreement to the plaintiff’s attention. (*Sanchez, supra*, 61 Cal.4th at p. 914.) “Arbitration itself is a fairly common means of dispute resolution and would not be beyond the reasonable expectation of the weaker party.” (*Parada v. Superior Court* (2009) 176 Cal.App.4th 1554, 1571.)

As for substantive unconscionability, the Montoyas’ arguments conflate substantive unconscionability with procedural, arguing that they had not ability to negotiate the terms ‘hidden’ in the Handbook that was not part of the purchase and sale contract with whomever the Montoyas bought the vehicle from. When these arguments are disentangled, the Montoyas make only two points as to why the agreement’s substance is unconscionable: (1) it requires arbitration and therefore waiver of the normal right to sue in court and (2) it specifies that the arbitration shall be conducted by and through American Arbitration Association.

The fact that the agreement requires arbitration of statutory claims under the Song–Beverly Consumer Warranty Act (the “SBCWA”) does nothing to tip the scales toward unconscionability. Arbitration is not disfavored, and parties may agree to resolve claims under the SBCWA by arbitration. (See *Sanchez, supra*, 61 Cal.4th at pp. 909–910.) Nor does the provision for the rules

and method of selection of arbitrators help the Montoyas. In the case relied upon by them on this point, the fact that the practical effect of the contract always permitted the drafting party to select the individual arbitrator was found to be unfair. (*Chavarria v. Ralphs Grocery Co.* (9th Cir. 2013) 733 F.3d 916, 924–926.) Specifically, it was “the preclusion of institutional arbitration administrators, namely AAA or JAMS, which have established rules and procedures to select a neutral arbitrator,” that was found overly one-sided. (*Id.*, at p. 923.) A fortiori, the fact that the present arbitration agreement *provides* for arbitration by AAA and its rules permitting for the selection of a neutral arbitrator weighs against a finding of substantive unconscionability. Courts have approved AAA as a neutral arbitrator. (*Roman v. Super. Court (Flo-Kem, Inc.)* (2009) 172 Cal.App.4th 1462, 1476 [AAA Rules provided “no meaningful difference” from the discovery approved by the Court in *Armendariz*]; *Craig v. Brown & Root, Inc.* (2000) 84 Cal.App.4th 416, 419 [finding employer using AAA had neutral arbitrator].)

Thus, even were the Montoyas not estopped from objecting to the relative inconspicuousness of the arbitration agreement to show a degree of procedural unconscionability, they have not shown the agreement is substantively unconscionable to the degree necessary to render the arbitration agreement unenforceable.

Accordingly, the motion is GRANTED and the case stayed pending the resolution of arbitration. The court sets a case management conference for February 2, 2027 at 9:30 a.m. with a joint case management statement due five court days before the conference. If the parties want to advance or continue the conference, they shall jointly email Department 4 and propose a new date (a Tuesday at 9:30 a.m.).

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendant shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 11

26-CLJ-00843

WELLS FARGO BANK, N.A. VS RICHARD QUREISHI

WELLS FARGO BANK, N.A.
RICHARD QUREISHI

STEPHANIE RAMOS
PRO SE

MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED

TENTATIVE RULING:

The court DENIES without prejudice plaintiff Wells Fargo Bank's unopposed motion to deem facts admitted for failure to provide proper notice to defendant Richard Qureishi of the hearing.

In the notice of motion, plaintiff put the date of July 2, 2026 as the hearing date. Then the clerk's office changed the hearing date to July 14, 2026. The court file shows a proof of service filed May 19, 2026, the same date of the filing but endorsed filed-documents are not returned the same day they are filed. Thus, the notice sent to defendant did not have the correct date.

There is no amended proof of service in the court file. Therefore, defendant did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [“court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 12

26-UDL-00484

DICKENS LIU, ET AL. VS. MAUNG SOE NAING, ET AL.

DICKENS LIU
MAUNG SOE NAING

ILENE M HOCHSTEIN
PRO SE

MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

Plaintiffs Dickens Liu and Elizabeth Liu's Motion for Summary Judgment filed June 29, 2026 is DENIED.

Plaintiffs' Request for Judicial Notice ("RJN") is GRANTED. (Evid. Code, § 452 subd. (c).)

In actions for obtaining possession of real property, a motion for summary judgment may be made at any time after the answer is filed upon giving five days' notice, and shall be granted or denied on the same basis as a motion under Code of Civil Procedure section 437c. (Code Civ. Proc., § 1170.7.) Opposition may be made orally at the hearing or in writing. (Cal. Rules of Court, rule 3.135(b).)

Code Civil Procedure section 437c, subdivision (b)(1) provides that a motion for summary judgment "shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken." Under *Aguilar v. Atlantic Richfield* (2001) 25 Cal.4th 826, the party moving for summary judgment has the burden of production to make a *prima facie* showing that there is no triable issue of any material fact. The burden then shifts to the nonmoving party to make a *prima facie* showing that there is a triable issue of material fact. (*Id.* at pp. 850-851; Code Civ. Proc., § 437, subd. (p)(1).)

"[A] person who holds over and continues in possession of ... real property after a three-day written notice to quit the property has been served upon the person, ... may be removed therefrom as prescribed in this chapter ... (2) Where the property has been sold pursuant to a writ of sale, upon the foreclosure by proceedings taken as prescribed in this code of a mortgage, or under an express power of sale contained therein, executed by such person, or a person under whom such person claims, and the title under the foreclosure has been duly perfected." (Code Civ. Proc., § 1161a, subd. (b)(2).)

Plaintiffs' Motion relies on the RJN and its exhibits and plaintiff Dickens Liu's Declaration, filed June 29, 2026. The evidence pertains to a Trustee's Sale of the Property and Plaintiffs' later purchase of the property at auction.

While Plaintiffs contend that "Plaintiff served Defendant with a three-day written notice to quit on April 14, 2026, which was served by substituted service and mailing on April 15, 2026 in

compliance with statutory requirements.” (MP&A ISO Motion, at p. 3:13-15), this statement is not supported by any admissible evidence in the Liu Declaration, in Plaintiffs’ RJN, or otherwise. No citation to any evidence is provided. The same is true of Plaintiff’s contentions that Defendants did not vacate the property and that they remain in possession.

Plaintiffs therefore have not met their initial burden to establish that there is no triable issue of any material fact or that they are entitled to judgment as a matter of law. Since they have not met their initial burden, it is immaterial that defendant has not submitted opposition because the burden has not shifted. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 845 [“Initially, the moving party bears a burden of production to make a prima facie showing of the nonexistence of any genuine issue of material fact. If he carries his burden of production, he causes a shift,...”].)

The Motion is accordingly DENIED.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiffs shall prepare a written order consistent with the Court’s ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 13

CLJ530144

POINTE PACIFIC, ET AL. VS DAVID PARVIN

POINTE PACIFIC HOMEOWNERS ASSOCIATION
DAVID PARVIN

PETER L WEBER
NELSON W GOODELL

DEFENDANT DAVID PARVIN'S MOTION FOR FEES AGAINST PLAINTIFF POINTE PACIFIC HOMEOWNERS' ASSOCIATION PURSUANT TO CIVIL CODE §5975

TENTATIVE RULING:

The Motion for Fees (the "Motion") brought by Defendant David Parvin is GRANTED with modification. Defendant's Request for Judicial Notice is GRANTED. Plaintiff's Request for Judicial Notice is GRANTED. Defendant's Evidentiary Objections are ruled upon as indicated *infra*.

This court has two other cases involving Parvin. One involves plaintiff Pointe Pacific Homeowners' Association and others as the defendants in a lawsuit brought by Parvin seeking to overturn the sale of his home, *Parvin v. Khanna et al.*, 25-CIV-00194. The other case is an unlawful detainer brought against Parvin by the purchaser of his property. Parvin's current attorney in this case, The Goodell Law Firm, represents Parvin in the other two cases.

Background

Pursuant to the allegations, Plaintiff is the homeowners' association (the "HOA") under the Declaration of Covenants, Conditions and Restrictions ("CC&Rs") of a condominium project within which Defendant owns Unit 4 located at 425 Mountain View, Daly City, California 94014 (the "Unit"). Defendant is a member of the HOA. On August 25, 2014, Plaintiff brought this limited jurisdiction action to enforce the CC&Rs against Defendant. On July 21, 2015, defendant answered.

While Plaintiff brought a motion for preliminary injunction, the October 27, 2014 hearing was ordered off calendar and the motion was never ruled upon. On May 19, 2017, plaintiff requested a case management conference stating that the case "has been languishing for over two years," but one was never set. On May 31, 2017, defendant's counsel, Allen J. Capeloto, filed a notice of change of address.

On December 3, 2025, this Court in an effort to clear its backlog of cases pending over five years, sent a Notice of Hearing and Order to Show cause re: Dismissal for Failure to Prosecute within Five Years. The Commissioner held a hearing on an Order to Show Cause Re: Dismissal of Entire Action, at which counsel of record for both parties appeared. (Minute Order, February 20, 2026.) Plaintiff's counsel informed the Court that he had recently substituted in, and

requested a continuance. (*Ibid.*) The Court dismissed the entire action without prejudice for lack of prosecution. (*Ibid.*; *see also* Order Dismissing Entire Action Without Prejudice for Delay in Prosecution, Etc., filed on May 22, 2026.)

Through the instant Motion, Defendant asserts that he is the prevailing party in this action because Plaintiff failed to prosecute it for nearly twelve years. Defendant seeks attorney's fees and costs in the amount of \$46,339.83, plus an amount of \$396.80 set forth in the concurrently filed Memorandum of Costs. (Civ. Code, § 5975.)

Legal Standards Governing the Motion

The Civil Code provides that, "In an action to enforce the governing documents, the prevailing party *shall* be awarded reasonable attorney's fees and costs." (Civ. Code, § 5975, subd. (c) (emphasis added).)

The Court of Appeal explains that:

A party contemplating litigation to enforce the covenants, conditions, and restrictions (CC&R's) of a condominium project should get its "ducks in a row." That is to say, such party should be ready to go forward procedurally and prove its case substantively. Failure to do so subjects the losing party to an award of attorney fees.

(*Salehi v. Surfside III Condominium Owners' Assn.* (2016) 200 Cal.App.4th 1146, 1150 (*Salehi*).) Further:

[O]ur Supreme Court implicitly applied the *Heather Farms* rationale to the award of contractual attorney fees: "[A]ttorney fees should not be awarded *automatically* to parties in whose favor a voluntary dismissal has been entered. In particular, it seems inaccurate to characterize the defendant as the 'prevailing party' if the plaintiff dismissed the action only after obtaining, by means of settlement or otherwise, all or most of the requested relief, or if the plaintiff dismissed for reasons, such as the defendant's insolvency, that have nothing to do with the probability of success on the merits.... If ... the contract allows the prevailing party to recover attorney fees but does not define 'prevailing party' or expressly either authorize or bar recovery of attorney fees in the event an action is dismissed, a court may base its attorney fees decision on a pragmatic definition of the extent to which each party has realized its litigation objectives, whether by judgment, settlement, or otherwise. [Citation.]"

(*Salehi, supra*, 200 Cal.App.4th 1146, 1154 (citation omitted).) In *Salehi*, the plaintiff had voluntarily dismissed all but two of her causes of action without prejudice because her expert was unavailable, intending to refile them later; when more experienced counsel advised her that he might be needed nonetheless, she moved for a continuance. Assuming that the trial Court had accepted this explanation, the Court of Appeal determined that:

We must conclude that the trial court abused its discretion as to who was the prevailing party. Its ruling exceeds the “bounds of reason.” We are hard pressed to explain how it reached its conclusion or how the holding of *Heather Farms* aids Salehi. The record does not suggest that Salehi would have prevailed on the merits. It does not appear that she was ready to go forward procedurally and prove the case substantively. To say that she was, somehow, the prevailing party on a “practical level” or that she realized her “litigation objectives” is to do violence to these legal phrases of art. Association was ready to defend on the merits and cannot be faulted because Salehi dismissed these causes of action.

Heather Farms is readily distinguishable. There, the dismissal was mandated by the terms of a global settlement. Here, the dismissals were based on Salehi’s faulty reasoning.

(*Salehi, supra*, 200 Cal.App.4th 1146, 1155.) The trial court had concluded that “the dismissal[s] seem[] to be due more to [Salehi’s] inexperience and poor decisions than any implied concession to the merits of [Association’s] case.” (*Salehi, supra*, 200 Cal.App.4th 1146, 1152.)

Defendant Is the Prevailing Party.

The instant action seeks the enforcement of governing documents. (Complaint, ¶¶ 3-5, 8, 14, and *passim*.)

Defendant has achieved his primary litigation objectives on a practical level. Here, as in *Salehi*, Defendant has realized these objectives even though the reason for dismissal may be unrelated to the probability of success on the merits:

Even though Salehi’s dismissals were based on reasons unrelated to “the probability of success on the merits” (*Santisas v. Goodin, supra*, 17 Cal.4th at p. 621, 71 Cal.Rptr.2d 830, 951 P.2d 399), it is unfair to deprive Association of its reasonable attorney fees. Because of Salehi’s dismissals, Association “realized its litigation objectives.” (*Id.*, at p. 622, 71 Cal.Rptr.2d 830, 951 P.2d 399.) The dismissals were due to Salehi’s faulty reasoning. To shield her from attorney fees liability would reward what the trial court characterized as her “poor decisions.” She should not be able to take advantage of her own fault or wrong. (Civ. Code, § 3517.)

(*Salehi, supra*, 200 Cal.App.4th 1146, 1156.) In the instant action, Plaintiff failed to prosecute for more than twice the five-year limit, during which Defendant nonetheless incurred attorney’s fees and costs. Though the parties devote significant energy to arguing the merits, the merits are not relevant to this decision under *Salehi*, as noted *supra*.

The Court Awards Parvin His Reasonable Attorneys' Fees

“Where a contract provides for attorneys’ fees but does not specify a particular sum, it is within the trial court’s discretion to determine what constitutes reasonable attorneys’ fees. (*Niederer v. Ferreira* (1987) 189 Cal.App.3d 1485, 1507–1508 [citing *Walters v. Marler* (1978) 83 Cal.App.3d 1, 36 and *Iverson v. Spang Industries, Inc.* (1975) 45 Cal.App.3d 303, 312].) “The major factors the trial court must consider in determining an attorneys’ fee award include: the nature of the litigation and its difficulty; the amount of money involved in the litigation; the skill required and employed in handling the litigation; the attention given to the case; the attorney’s success, learning, age and experience in the particular type of work demanded; the intricacy and importance of the litigation; the labor and necessity for skilled legal training and ability in trying the case; and the amount of time spent on the case.” (*Id.* at p. 1508 [citing *In re Marriage of Cueva* (1978) 86 Cal.App.3d 290, 296 and *Nevin v. Salk* (1975) 45 Cal.App.3d 331, 343].) “[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award.” (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095 [internal quotations and citation omitted].)

As to the hourly rate, the reasonable hourly rate is the reasonable hourly rate for San Mateo County where this case is venued. “ ‘The reasonable hourly rate is that prevailing in the community for similar work.’ ” (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at p. 1095].) This Court may use its own experience to determine the value of attorneys’ fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 [“The value of attorney’s services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value.”]; *Reynolds v. Ford Motor Company* (2020) 47 Cal.App.5th 1105, 1113-14 [“The trial court acted well within its discretion in using ‘the prevailing market value in the community for similar legal services’ relying on its personal knowledge and familiarity with the area legal services, as the ‘touchstone’ for determination” of the reasonable hourly rates.”] (citations omitted)].) This Court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys’ fees and costs frequently during her time as a judicial officer. The Court also relies on the Laffey Matrix, www.laffeymatrix.com/see/html, referred to in the Goodell reply. (*Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 702 [court can use Laffey Matrix for reasonable hourly rate].)

As to the reasonableness of the work, this court has a responsibility to review the billing records. In *Ketchum v. Moses*, our Supreme Court explained: “In referring to ‘reasonable’ compensation, we indicated that trial courts must carefully review attorney documentation of hours expended; ‘padding’ in the form of inefficient or duplicative efforts is not subject to compensation.” (*Ketchum v. Moses, supra*, 24 Cal.4th at p. 1132.) In *Harman v. City and County of San Francisco* (2006) 136 Cal.App.4th 1279 the court analyzed the considerations relevant to this initial lodestar determination by looking to *Hensley v. Eckerhart* (1983) 461 U.S. 424, in which the court “instruct[ed] that the initial lodestar calculation should exclude ‘hours that were not reasonably expended’ ” and drew an analogy to private billing practices: “ ‘Counsel for the

prevailing party should make a good-faith effort to exclude from a fee request hours that are excessive, redundant, or otherwise unnecessary, just as a lawyer in private practice ethically is obligated to exclude such hours from his fee submission. “In the private sector, ‘billing judgment’ is an important component in fee setting. It is no less important here. Hours that are not properly billed to one's client also are not properly billed to one's adversary pursuant to statutory authority.” ’ ’ ’ (*Harman v. City and County of San Francisco*, at p. 1310 [quoting *Hensley v. Eckerhart*, at p. 434].) “Counsel is not entitled to compensation for ... work merely because it was performed. Rather, it is counsel's burden “to persuade the trial court the work was reasonably necessary, both as to the particular tasks performed and the amount of time devoted to them.” (*Howell v. State Dept. of State Hospitals* (2024) 107 Cal.App.5th 143, 158–159 [internal quotations and citation omitted].)

There are two attorneys’ seeking fees in this motion: the original attorney who defended the case from its inception, Capeloto; and Goodell, who substituted in on February 17, 2026, two-and-one half months after the Court served the OSC re Dismissal Notice.

Defendant’s former counsel for eleven years, Capeloto, declares his minimum billing rate to be \$470 per hour, and that he performed eight sets of services for Defendant since November 2014. (Capeloto Decl., ¶¶ 7-8.) He does not show invoices, but his claim of only 31.1 hours for all of those services over all of that time is reasonable (*id.*, ¶ 9), and suffices. (See, e.g., *Syers Props. III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 699 [collecting citations].) His hourly rate times his hours declared totals \$14,617. (See also Goodell Decl., ¶¶ 54-55.) The Court finds his billing rate reasonable and it is proper to award him his current rate for some of the work, as explained below.

Goodell, the current counsel, declares that he has identified all time entries for the instant action from its filing through the hearing on the OSC Re: Dismissal on February 20, 2026, and removed all costs that are included in the Memorandum of Costs. (Goodell Decl., ¶¶ 16-17, & Exh. 3.) Defendant’s billing rate of \$700 per hour is reasonable. (*Id.*, ¶ 18.) Defendant declares his own records showing 8.5 hours of this time after substituting in, from February 13-20, 2026, plus five hours for the Motion. (*Id.*, ¶¶ 44-45, & Exh. 9.) He further requests four more hours for the Reply and the hearing, and \$60 for filing the Motion, for a total of \$8,810 in fees, which includes \$60 in costs. (*Id.*, ¶¶ 46-47.) Goodell declares that he conservatively estimates a rate of \$250 per hour for his associate, who spent 13.4 hours on this matter, for a total of \$3,350. (*Id.*, ¶¶ 48, 50, & 52-53.)

Goodell and Capeloto provide no explanation on why Goodell substituted into this case after the Court had already set the OSC for Dismissal and the case had been pending for significantly more than five years with no obvious tolling of the statute. While Defendant is entitled to counsel of his choice, the Court does not find it reasonable for Plaintiff to have to pay for this change in attorney.

As to the hourly rate, the Court finds an hourly rate of \$700.00 per hour for Goodell and \$250 per hour for his associate reasonable.

The Court, however, does not find the amount of time reasonable. The Court strikes the 1.0 hours for Goodell and the 1.5 hours for the associate to substitute in as counsel and review the case docket as not reasonable to charge to Plaintiff because Defendant chose to change counsel. The Court finds the 2.2 hours Goodell charged for time around and including attending the Order to Show cause reasonable as well as the .5 hours by the associate. The Court does not find the 5.3 hours for Goodell and 11.4 hours by the associate for preparing the motion for attorneys' fees reasonable to charge to Plaintiff. Had the original attorney prepared the motion, he could have done it more efficiently. In relationship to the total time that Capeloto, spent on this limited jurisdiction case, 31.1 hours for all of Capeloto's services, initially spending 16.7 hours to prepare an attorneys' fees motion, more than half the time spent on defending this unlimited case, is unreasonable. In addition, Goodell estimates another four hours (two hours to review the opposition, preparing the reply and two hours to attend the hearing). (Goodell Reply Decl., ¶ 46.) This additional time brings the time to preparing the fee motion to 21.7 hours, an unreasonable amount of time in light of the facts of this case. The court strikes all of the Goodell's firms fees except for the 2.2 hours for Goodell and .5 for the work regarding the OSC re dismissal. These fees shall be calculated at the Goodell firm's rate. For the preparation of this attorneys' fees' motion, the court awards five hours to be billed at the \$470.00 hourly rate of Capeloto. The Court finds that this hourly rate is reasonable for an attorneys' fees motion, which was not complicated. Further, since the entries all simply state "Preparing Motion for Attorneys Fees," there is no detail to see if there was duplicative billing or work that could have been performed by a paralegal or secretary (whose time is compensable, but at a lower rate than an attorney).

Goodell further declares, showing Plaintiff's discovery responses in another matter in support, that Plaintiff collected \$19,524.40 from Defendant for litigating this action, and Defendant wants these returned as he has here prevailed. (Goodell Decl., ¶ 56, & 12:23 (*see also* 12:12), in Exh. 1.) However, these were not Defendant's fees, but Plaintiff's. The Court declines to award Plaintiff's fees as though they were Defendant's.

The Court awards the costs as reasonable incurred. Defendant's counsel's total includes the cost of mileage to and from the hearing of February 20, 2026, on the OSC, set forth as \$38.43. (*Id.*, p.63, in Exh. 9.) This amount is not claimed on the concurrently filed Memorandum of Costs, but was reasonable incurred.

Defendant's Request for Judicial Notice in Support of the Motion

Pursuant to Evidence Code section 452, subdivision (d), and section 453, Defendant's Request for Judicial Notice ("RJN") is GRANTED as to the documents submitted therewith. (Defendant's RJN, Exhs. Nos. 1-6.) However, judicial notice of the documents shown in Exhibits 1-3 and 5-6 is limited to their existence, content, and authenticity, and does not extend to the truth of the factual matters contained therein. (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400.)

Plaintiff's Request for Judicial Notice in Opposition

Pursuant to Evidence Code section 452, subdivision (d), and section 453, Plaintiff's RJN is GRANTED as to the documents submitted therewith. (Plaintiff's RJN, Exhs. A-D.)

However, judicial notice of the documents shown in Exhibits A-D is limited to their existence, content, and authenticity, and does not extend to the truth of the factual matters contained therein. (*Dominguez v. Bonta, supra*, 87 Cal.App.5th at p. 400.)

Defendant's Evidentiary Objections

Defendant's Evidentiary Objections to the Declaration of Michael P. Terrizzi are ruled upon as follows:

Objs. Nos. 1-3, & 5: SUSTAINED.

Obj. No. 4: SUSTAINED as to, "because Parvin failed and continued to fail to cooperate with the HOA related to access to his unit to investigate the need for remedial measures occasioned by water intrusion"; OVERRULED as to the rest.

Defendant's Evidentiary Objections to the Declaration of Joanna Lam are SUSTAINED.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare for the Court's signature a written order consistent with the Court's ruling, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

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